



Rule - 115 Rate of exchange for conversion into rupees of income expressed in foreign currency. | Income-tax Rules, 1962

Rate of exchange for conversion into rupees of income expressed in foreign currency.

115. (1) The rate of exchange for the calculation of the value in rupees of any income accruing or arising or deemed to accrue or arise to the assessee in foreign currency or received or deemed to be received by him or on his behalf in foreign currency shall be the telegraphic transfer buying rate of such currency as on the specified date.

Explanation.—For the purposes of this rule,—

- (1) "telegraphic transfer buying rate" shall have the same meaning as in the *Explanation* to rule 26;
- (2) "specified date" means—
 - (a) in respect of income chargeable under the head "Salaries", the last day of the month immediately preceding the month in which the salary is due, or is paid in advance or in arrears;
 - (b) in respect of income by way of "interest on securities", the last day of the month immediately preceding the month in which the income is due;
 - (c) in respect of income chargeable under the heads "Income from house property", "Profits and gains of business or profession" [not being income referred to in clause (d)] and "Income from other sources" (not being income by way of dividends and "Interest on securities"), the last day of the previous year of the assessee;
 - (d) in respect of income chargeable under the head "Profits and gains of business or profession" in the case of a non-resident engaged in the business of operation of ships, the last day of the month immediately preceding the month in which such income is deemed to accrue or arise in India;
 - (e) in respect of income by way of dividends, the last day of the month immediately preceding the month in which the dividend is declared, distributed or paid by the company;
 - (f) in respect of income chargeable under the head "Capital gains", the last day of the month immediately preceding the month in which the capital asset is transferred :

Provided that the specified date, in respect of income referred to in sub-clauses (a) to (f) payable in foreign currency and from which tax has been deducted at source under rule 26, shall be the date on which the tax was required to be deducted] under the provisions of the Chapter XVII-B.

(2) Nothing contained in sub-rule (1) shall apply in respect of income referred to in clause (c) of the *Explanation* to sub-rule (1) where such income is received in, or brought into India by the assessee or on his

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Rate of exchange for conversion into rupees of income expressed in foreign currency.

206. (1) The rate of exchange for the calculation of the value in rupees of any income, accruing or arising or deemed to accrue or arise to the assessee in foreign currency, or received or deemed to be received by him or on his behalf in foreign currency, shall be the telegraphic transfer buying rate of such currency as on the specified date.

(2) For the purposes of this rule—

- (a) "telegraphic transfer buying rate" shall have the meaning assigned to it in rule 207; and
- (b) (i) the "specified date" in respect of the nature of income referred in column B of the following Table shall be as given in column C:

TABLE

Sl. No.	Types of Income	Specified Date
A	B	C
1.	Income chargeable under the head "Salaries".	Last day of the month, immediately preceding the month in which salary is due, or is paid in advance, or arrears.
2.	Income by way of interest on securities.	Last day of the month, immediately preceding the month in which the income is due.
3.	Income chargeable under the heads "Income from house property", "Profits and gains of business or profession" (not being income referred to in Sl. No. 4), and "Income from other sources" (excluding dividends and interest on securities).	Last day of the tax year of the assessee.
4.	Income chargeable under the head "Profits and gains of business or profession" in the case of a non-resident engaged in the business of operation of ships.	Last day of the month, immediately preceding the month in which the income is deemed to arise in India.
5.	Income by way of dividends.	Last day of the month, immediately

behalf before the specified date in accordance with the provisions of the Foreign Exchange Regulation Act, 1973 (46 of 1973).

		in which dividend is declared, distributed, or paid by the company.
6.	Income chargeable under the head "Capital gains".	Last day of the month, immediately preceding the month of in which the capital asset in the table is transferred;

(ii) the specified date, in respect of income referred to in sub-clause (ii), payable in foreign currency and from which tax has been deducted at source under rule 207, shall be the date on which the tax was required to be deducted under the provisions of the Chapter XIX-B.

(3) Nothing contained in sub-rule (1) shall apply in respect of income referred to in sub-rule (2)(b) [Table: Sl. No. 3], where such income is received in, or brought into India by the assessee or on his behalf before the specified date, in accordance with the provisions of the Foreign Exchange Regulation Act, 1973 (46 of 1973).